

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kobi Bordoley	Team: Squad #03	CCRB Case #: 201701245	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 02/16/2017 10:20 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/16/2018	Precinct: 120		
Date/Time CV Reported Thu, 02/16/2017 10:30 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 02/16/2017 10:30 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT2 Arthur Leahy	01783	940367	WARRSEC
2. SDS David Gomes	05024	917690	WARRSEC
3. SGT Michael Sena	05138	924477	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT2 Michael Bennett	05129	901162	WARRSEC
2. POM Lee Maldonado	02132	948083	WARRSEC
3. POM Daniel Golat	09913	950506	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT2 Arthur Leahy	Abuse: Detective Arthur Leahy entered and searched § 87(2)(b) in Staten Island.	A . Substantiated
B . SDS David Gomes	Abuse: Sergeant David Gomes entered and searched § 87(2)(b) in Staten Island.	B . Substantiated
C . SGT Michael Sena	Abuse: Sergeant Michael Sena entered and searched § 87(2)(b) in Staten Island.	C . Substantiated
D . DT2 Arthur Leahy	Abuse: Detective Arthur Leahy refused to show the arrest warrant to § 87(2)(b)	D . Unsubstantiated

Case Summary

On February 16, 2017, § 87(2)(b) made this complaint with the CCRB via telephone.

On February 16, 2017, at approximately 10:00 A.M., Det. Arthur Leahy, PO Daniel Golat, Det. Michael Bennett, PO Lee Maldonado, Sgt. Michael Sena, and Sgt. David Gomes, all of the Staten Island Warrant Section, went to § 87(2)(b) in Staten Island based on an I-Card with probable cause to arrest for § 87(2)(b) and a bench warrant issued in 2006 for § 87(2)(b). Upon arrival, PO Golat and PO Maldonado went to the back of the house while Det. Bennett knocked on the windows and Det. Leahy rang the doorbell. Neither action garnered a response. Det. Leahy then knocked on the door to the house, which became ajar. He then entered, along with Sgt. Sena and Sgt. Gomes (**Allegations A, B, and C**), as well as Det. Bennett. While inside, Det. Leahy met § 87(2)(b) and asked her questions about her son, § 87(2)(b) and § 87(2)(b). § 87(2)(b) allegedly asked Det. Leahy if she could see the arrest warrant, but he refused to show it to her (**Allegation D**). After answering some of the officers' questions, § 87(2)(b) told them to leave, which they did.

There was no video footage of this incident. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this case because § 87(2)(b) d.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On April 26, 2017, a FOIL request was submitted in regards to any Notices of Claim filed for this incident, and will be added to the case file upon Receipt (02 Board Review).

Civilian and Officer CCRB Histories

- § 87(2)(b) has been involved in ten other CCRB Complaints, none of which include any substantiated allegations. § 87(2)(g)
- Det. Leahy has been a member of the NYPD for 11 years, and has had three prior cases with CCRB involving four allegations and no substantiations. § 87(2)(g)
- Sgt. Gomes has been a member of the NYPD for 20 years and has had two prior cases with the CCRB, involving three allegations and one substantiation. In 201403223 an allegation of an entry and search was substantiated. § 87(2)(g)
- Sgt. Sena has been a member of the NYPD for 17 years and this is his first case with the CCRB.

Potential Issues

- § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)

Explanation of Subject Officer Identification

- Det. Leahy is the subject of **Allegation A** because he decided to enter the residence. Sgt. Gomes and Sgt. Sena are subjects of **Allegations B** and **C** because they participated in the entry, and as the supervisors on the scene are responsible for ensuring that officers under their command adhere to proper procedure.

Allegation A – Abuse of Authority: Detective Arthur Leahy entered and searched § 87(2)(b) in Staten Island.

Allegation B – Abuse of Authority: Sergeant David Gomes entered and searched § 87(2)(b) in Staten Island.

Allegation C – Abuse of Authority: Sergeant Michael Sena entered and searched § 87(2)(b) in Staten Island.

§ 87(2)(b) said that she was sleeping in her bedroom on the second floor of her house when she heard loud banging downstairs as well as shuffling feet and male voices. She then walked to the staircase and saw Det. Leahy, Det. Bennett, Sgt. Gomes, and Sgt. Sena downstairs, inside the living room of her house (04 Board Review).

Det. Leahy said on the date of the incident, prior to going to the incident location he was instructed by a lieutenant to visit § 87(2)(b) in regards to an investigation into a gang assault in which § 87(2)(b) was involved. Det. Leahy ran computer checks to verify that § 87(2)(b) address was § 87(2)(b) using ECMS, CRIMS, and YSE. Reports generated from these databases all indicated that § 87(2)(b) was his most recent address. After finding the I-Card for probable cause to arrest § 87(2)(b) he ran a warrant check for the location and found a warrant for § 87(2)(b) from 2006, which listed § 87(2)(b) as his address. Det. Leahy did not do any other checks to verify that § 87(2)(b) lived at that location, and had no reason to believe that he resided at the address on the warrant other than the warrant itself. Det. Leahy acknowledged that his main purpose for going to the location was the I-Card and that he would not have gone to the location only for the warrant, which he believed was for a misdemeanor. He also acknowledged that an I-Card for probable cause to arrest does not allow an entry. Upon arriving at the location and meeting the other officers there, PO Golat and PO Maldonado went to the back of the residence, while Det. Leahy and the other officers approached the residence. Det. Bennett knocked on the windows, which were covered by curtains, while he rang the doorbell. Det. Leahy did not surveil the location or speak to any neighbors before approaching the house, and did not see a name on a mailbox, under the doorbell, or on any visible pieces of mail. The knocks on the windows and ringing of the doorbell did not garner any

The possession of five year old, limited information regarding the address of an individual listed on an arrest or bench warrant does not reasonably determine that that individual still resides or is located at the address in question (People v. Smith 806 N.Y.S.2d 447, 2005 (15 Board Review)).

§ 87(2)(g)

it is recommended that
Allegations A, B, and C be *substantiated*.

Allegation D – Abuse of Authority: Detective Arthur Leahy refused to show the arrest warrant to § 87(2)(b)

After seeing the officers, § 87(2)(b) asked Det. Leahy what he was doing in the house. He said the officers had an arrest warrant for a male whose name § 87(2)(b) did not recall, but which began with an “M”. She said she did not know who that was. He then asked if she knew who § 87(2)(b) was. She responded that he was her son. Det. Leahy asked where he was, as he also had an arrest warrant for him. She said that he was not there, and that she did not know where he was. Another officer asked who she was and where § 87(2)(b) had been. § 87(2)(b) said that she did not have to answer their questions, and wanted them to leave. Det. Leahy responded that he had a warrant, to which § 87(2)(b) said it was not a search warrant but an arrest warrant, and therefore did not give officers a right to enter her house without consent. During the conversation, she asked Det. Leahy to show her an arrest warrant, but he refused to do so, saying he did not have to. § 87(2)(b) told the officers to leave, and they did. On the way out, she asked Det. Leahy for his shield number, which he gave. § 87(2)(b)'s statements were generally consistent, except that in her intake call she did not allege that Det. Leahy refused to show her an arrest warrant (04 Board Review, 17 Board Review).

Det. Leahy said that about a minute after entering the house and announcing himself, § 87(2)(b) came down the stairs and asked him what was going on. Det. Leahy said that he was at the location in regards to § 87(2)(b) who was under investigation. He also said that he had a warrant for § 87(2)(b) and asked if she knew who he was. § 87(2)(b) said that she did not know who he was, and that she did not know where § 87(2)(b) was. Det. Leahy did not recall if she requested to see the warrant, but knew that he showed the warrant to her during the incident. Det. Leahy then asked again about § 87(2)(b) at which point § 87(2)(b) became irate, and started cursing at Det. Leahy, telling him to leave. He then left the house with the other officers, and gave § 87(2)(b) his shield number, which she asked for (05 Board Review).

Sgt. Gomes, Sgt. Sena, and Det. Bennett generally corroborated Det. Leahy's testimony (06-08 Board Review).

Officers must inform the defendant of an arrest warrant and the offense charged unless physical resistance, flight or other factors make such procedure impractical, and must present the warrant, if requested, or as soon as possible (PG 208-42) (18 Board Review).

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be *unsubstantiated*.

Squad: 3

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date